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TAB 8



Board of Education Report

File #: Rep-269-23/24, **Version:** 1

**Define and Approve the 2024-2025 Education Code Section 47614 (Proposition 39) Facilities Renovation Effort and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein
May 7, 2024**

Facilities Services Division and Office of the Chief Strategy Officer

Action Proposed:

Define and approve 2024-2025 Education Code Section 47614 (Proposition 39) facilities renovations at up to 51 school sites, as listed on Exhibits A, B, and C, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The not-to-exceed cumulative budget for this renovation effort is \$6,544,452.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials.

Background:

With the passage of Proposition 39 in November 2000, California Education Code Section 47614 was amended with the intent that public school facilities should be shared fairly among all public school students, including those in charter schools. Proposition 39 requires that school districts make available, to all charter schools operating in their school district that submitted a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools of the district. Facilities provided shall be contiguous, furnished and equipped, and shall remain the property of the school district.

Each of the charter schools identified on Exhibits A and B submitted a legally sufficient facilities request to the District and may occupy District school sites for the 2024-2025 school year pursuant to Proposition 39. In accordance with the requirements and timelines of Proposition 39, preliminary proposals are issued on February 1st and final offers are issued on April 1st each year.

With approval of this proposed action, Bond Program funds earmarked for charter school facilities projects will be made available to immediately execute renovations at multiple District school sites in order to fulfill the District's responsibilities imposed by Proposition 39. These facilities improvements will increase the likelihood that the District school and charter school will successfully and safely co-locate on a single school site with minimal interference and disruption to their respective educational programs. The scope of work to be undertaken at each school site and its associated schedule and budget may vary depending on site conditions and needs.

The 2024-2025 Proposition 39 Facilities Renovation Effort includes various facilities renovations, reconfigurations, technology, furniture and equipment, and communication/safety systems purchases and upgrades, such as:

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Low Voltage Systems: Local area data networks, phone and public address systems, and independent intrusion alarms. Modifications to reconfigure facilities for District-operated programs or another charter school where an existing charter school occupant will relocate to another District school site, relocate to a private/third party site, or cease operations.

Site Renovations and Reconfigurations: Miscellaneous renovations and reconfigurations to classroom space identified for charter school use. Improvements to school facilities where charter schools currently occupy space but will not continue occupancy in the 2024-2025 school year will be reconfigured, including connecting low-voltage systems for District-operated or other programs, as appropriate.

Technology Equipment: Repurpose and purchase computers, laptop carts and/or end user peripherals.

Furniture & Equipment: Repurpose existing furniture and equipment, and plan, purchase and deliver new furniture and equipment (e.g., desks, chairs, bookshelves, waste bins, emergency radio systems, but excluding technology equipment).

Re-Keying: Charter school spaces only.

Office of Environmental Health and Safety: California Environmental Quality Act (CEQA) analysis, including associated regulatory obligations.

The space allocated to each charter school by the District must be furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school. For good cause, this period is subject to reduction by the District, but to no fewer than seven working days. As such, work will commence immediately after Board approval to ensure adequate facilities are allocated in a timely manner to each charter school.

Exhibit B lists all existing co-location sites on which charter schools will continue to occupy the same space in 2024-2025 as they currently occupy in the 2023-2024 school year (i.e., “No Change”). Although there is typically no new scope required for these sites, the District may need to perform some renovation work in order to continue to ensure the conditions of the facilities occupied by a charter school remain reasonably equivalent. The potential scope of work for each “No Change” site may vary depending on site conditions and needs. If any additional work is required, District staff will follow the Budget Modification Request process for the corresponding sites referenced in Exhibit B, in accordance with District policy.

Exhibit C lists co-location sites on which spaces are presently configured for charter schools that will not continue occupancy in the 2024-2025 school year. Sites vacated will be returned to previous conditions with all low voltage systems reconnected to District-operated programs, as appropriate.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens’ Oversight Committee (BOC) at its meeting on April 25, 2024. The presentation that was provided is included as Exhibit E. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified’s ability to successfully implement the Facilities SEP.

Expected Outcomes:

Approval of the proposed action will allow the execution of the 2024-2025 Proposition 39 facilities renovations at up to 51 District school sites.

Renovations for the 33 projects at the 32 District school sites in Exhibit A are for charter schools that are expected to serve a collective total in-district classroom average daily attendance of approximately 7,900 students in approximately 480 classrooms, special education spaces, and administrative offices.

Of the fifteen District school sites in Exhibit B, charter schools are expected to continue serving a collective total in-district classroom average daily attendance of approximately 3,600 students in approximately 210 classrooms, special education spaces, and administrative offices.

Collectively, charter schools are expected to enroll approximately 11,500 students in approximately 700 classrooms, special education spaces, and administrative offices.

Board Options and Consequences:

A “yes” vote will result in the Facilities SEP being amended and the District utilizing Bond Program funds earmarked for charter school facilities projects to complete facilities renovations at District school sites as identified in Exhibits A, B, and C.

A “no” vote will result in the District being obligated to use General Funds to complete the facilities renovation projects identified in Exhibits A, B, and C due to the obligation to allocate the use of reasonably equivalent, contiguous, furnished and equipped facilities to the charter schools pursuant to Proposition 39 for the 2024-2025 school year.

Policy Implications:

This action does not change District policies.

Budget Impact:

The not-to-exceed cumulative budget for this renovation effort is \$6,544,452. The renovation effort is funded with Bond Program funds earmarked specifically for charter school facilities upgrades and expansions. Should a charter school not accept the District’s offer of space, the school site may be allocated to another charter school, or renovations at that individual school site will not be undertaken and the associated funding will not be expended.

The not-to-exceed budget is based on the best information presently available to the District. However, due to the current economic climate, these anticipated costs may require adjustments due to a variety of factors, such as the availability of the District’s current workforce, and delays and increased costs of manufacturing, sales, and distribution of materials and supplies. Individual project budgets will be reviewed regularly and will be adjusted accordingly to enable the successful completion of each project.

Student Impact:

Pursuant to Proposition 39, public school facilities should be shared fairly among all public school pupils, including those in charter schools. Through this proposed action, the Board of Education authorizes staff to fulfill this mandate.

Equity Impact:

Proposition 39 is a state law passed by California voters in 2000, which requires school districts to make facilities (including both classroom and non-classroom spaces) available to public charter schools serving students who reside in the district.

Issues and Analysis:

Proposition 39 requires school districts to make available, to all charter schools operating in their school district that submit a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools in the district. Facilities provided shall be contiguous, furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school.

To fulfill this mandate, the District faces numerous challenges, including:

- Extremely brief amount of time between a charter school's May 1st acceptance of the District's final offer and the deadline for the District to provide occupancy at least 10 working days before each charter school's first day of instruction.
- Due to the current economic climate, a variety of factors such as availability of the District's current workforce, and delays and increased costs in manufacturing, sales, and distribution of materials and supplies.
- Very narrow window of time to assess the type, amount and condition of the District's existing technology, furniture and equipment, match it to the charter schools' grade levels and plan, repurpose/purchase, receive and deliver additional/supplemental technology, furniture and equipment.
- Varying conditions of allocated spaces on different school sites, including amount and type of furniture and equipment that may change between original site survey and actual occupancy.
- Limited sources of reasonably equivalent existing furniture and equipment, and lead time required to research, locate, validate, repair and repurpose it.

The District has implemented numerous successful strategies to reduce project costs and timelines, including:

- Establishing procedures to streamline the process from pre-planning to post-occupancy.
- Re-purposing existing furniture and equipment recovered from charter schools that vacated District facilities or have expiring furniture and equipment leases.
- Creating templates for reasonably equivalent furniture and equipment for specific grade levels in order to improve planning, repurposing/purchasing and delivery.
- Standardizing manufactured item selections to speed purchase, production, and delivery.

Attachments:

Exhibit A - 2024-25 Proposition 39 Facilities Renovations

Exhibit B - 2024-25 Proposition 39 Facilities Renovations "No Change" Projects

Exhibit C - 2024-25 Proposition 39 Facilities Renovations "Vacating" Projects

Exhibit D - BOC Resolution

Exhibit E - BOC Presentation

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Informatives:

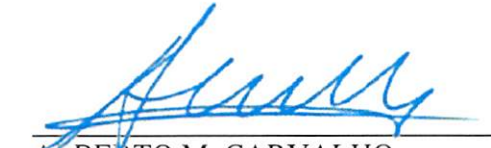
None

Submitted:

04/08/24

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent, Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


KRISZTINA A. TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NORBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

APPROVED BY:


VERONICA ARREGUIN
Chief Strategy Officer

PRESENTED BY:

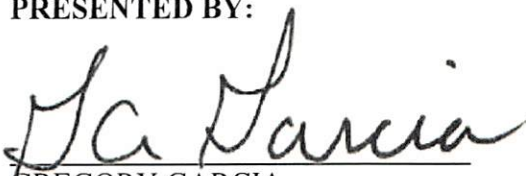

GREGORY GARCIA
Acting Director of Facilities Maintenance and Operations
Facilities Services Division

Exhibit A
2024-25 Proposition 39 Facilities Renovations

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#	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; RD=Reduction)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	Charter School Spaces to Reconfigure to Office	Charter School Spaces to Repurpose (Furniture Relocations Only)	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
1	1	S	24th St. ES	Crown Preparatory Academy	G	1	20	2	1	5	0	-3	0	0	26	\$416,400	Q2-2024	Q3-2024
2	1	S	42nd St. ES	ISANA Nascent Academy	G	1	11	2	0	0	1	0	0	0	15	\$59,700	Q2-2024	Q3-2024
3	1	S	Audubon MS	Crenshaw Arts/Tech Charter HS (CATCH)	RD	1	8	2	0	0	0	-1	0	0	10	\$26,800	Q2-2024	Q3-2024
4	1	S	Clay MS	ICEF Innovation Los Angeles	N	0	0	0	1	12	2	0	0	0	15	\$1,094,300	Q2-2024	Q3-2024
5	1	S	Harte Preparatory MS	Ednovate - South LA College Prep	RD	1	22	3	0	0	0	-6	0	0	20	\$123,300	Q2-2024	Q3-2024
6	1	S	King ES	New Heights Charter School	G	1	14	2	0	1	0	0	0	0	18	\$79,700	Q2-2024	Q3-2024
7	1	S	Washington Preparatory HS	Stella High Charter Academy	N	0	0	0	1	25	3	0	0	0	29	\$1,611,100	Q2-2024	Q3-2024
8	1	W	6th Ave. ES	Lashon Academy - City Campus	G	1	5	2	0	2	0	0	0	0	10	\$116,900	Q2-2024	Q3-2024
9	1	W	Wilton ES	Magnolia Science Academy #6	G	1	4	2	0	2	0	0	0	0	9	\$111,900	Q2-2024	Q3-2024
10	2	E	2nd St. ES	Extera Public School - 2nd St.	RD	1	11	2	0	0	0	-3	0	0	11	\$65,400	Q2-2024	Q3-2024
11	2	E	Belmont HS	Los Angeles Academy of Arts and Enterprise	RD	1	13	2	0	0	0	-2	0	0	14	\$46,100	Q2-2024	Q3-2024
12	2	E	Breed ES	Extera Public School - Breed	RD	1	8	2	0	0	0	-2	0	0	9	\$26,800	Q2-2024	Q3-2024
13	2	E	Eastman ES	Extera Public School #2 - Eastman	G	1	5	2	0	1	0	0	0	0	9	\$59,700	Q2-2024	Q3-2024
14	2	E	Stevenson College & Career Preparatory	Collegiate Charter HS of Los Angeles	G	1	9	2	0	1	0	0	0	0	13	\$59,700	Q2-2024	Q3-2024

Exhibit A
2024-25 Proposition 39 Facilities Renovations

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#	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; RD=Reduction)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	Charter School Spaces to Reconfigure to Office	Charter School Spaces to Repurpose (Furniture Relocations Only)	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
15	3	N	Canoga Park MS	Ingenium Charter School	RD	1	15	3	0	0	0	-1	0	1	18	\$30,000	Q2-2024	Q3-2024
16	4	N	Sutter MS	Ingenium Charter MS	G	1	6	2	0	1	0	0	0	0	10	\$59,700	Q2-2024	Q3-2024
17	4	W	Webster MS	Magnolia Science Academy #4	G	1	4	2	0	2	0	0	0	0	9	\$111,900	Q2-2024	Q3-2024
18	4	W	Westchester Enriched Sciences Magnets	WISH Academy HS	G	1	11	3	0	3	1	0	0	0	19	\$238,300	Q2-2024	Q3-2024
19	4	W	Westchester Enriched Sciences Magnets	WISH Community School	R	1	17	1	0	0	1	-1	0	0	19	\$79,000	Q2-2024	Q3-2024
20	4	W	Wright STEAM Magnet MS	WISH Community School	G	1	22	2	0	1	1	0	0	0	27	\$121,900	Q2-2024	Q3-2024
21	5	E	Trinity ES	Gabriella Charter School #2	G	1	9	2	0	2	0	0	0	0	14	\$111,900	Q2-2024	Q3-2024
22	5	W	Irving STEAM Magnet MS	ISANA Octavia Academy	RD	1	10	2	0	0	0	-2	0	0	11	\$46,100	Q2-2024	Q3-2024
23	5	W	Selma ES	Larchmont Charter School	G	1	19	3	0	6	4	0	0	4	33	\$566,300	Q2-2024	Q3-2024
24	6	N	Erwin ES	Ararat Charter School	G	1	9	1	0	0	1	0	0	0	12	\$59,700	Q2-2024	Q3-2024
25	6	N	Fair ES	New Horizons Charter Academy	RD	1	11	2	0	0	0	-3	0	0	11	\$65,400	Q2-2024	Q3-2024
26	6	N	Fulton College Preparatory School	Lashon Academy - Valley Campus	G	1	25	2	0	2	0	0	0	0	30	\$115,900	Q2-2024	Q3-2024
27	6	N	Glenwood ES	ISANA Palmati Academy	G	1	4	1	0	2	1	0	0	3	9	\$191,700	Q2-2024	Q3-2024
28	6	N	Maclay MS	Bert Corona Charter HS	R	1	9	3	0	0	0	0	0	1	13	\$10,700	Q2-2024	Q3-2024

Exhibit A
2024-25 Proposition 39 Facilities Renovations

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#	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; RD=Reduction)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	Charter School Spaces to Reconfigure to Office	Charter School Spaces to Repurpose (Furniture Relocations Only)	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
29	6	N	Panorama HS	Girls Athletic Leadership School	G	1	7	1	0	1	1	0	0	0	11	\$111,900	Q2-2024	Q3-2024
30	6	N	Romer MS	ISANA Palmati Academy	R	1	10	2	0	1	0	-1	0	0	13	\$79,000	Q2-2024	Q3-2024
31	6	N	Valerio ES	Lashon Academy - Valley Campus	G	1	3	2	0	1	0	0	0	0	7	\$59,700	Q2-2024	Q3-2024
32	7	S	Curtiss MS	Magnolia Science Academy #3	G	1	11	3	0	2	0	0	0	1	17	\$121,100	Q2-2024	Q3-2024
33	7	S	Gardena HS	New Millennium Secondary School	R	1	6	2	0	0	0	0	1	0	9	\$55,700	Q2-2024	Q3-2024
						31	338	64	3	73	16	-25	1	10	481	\$ 6,133,700		

Notes

- Operators are entitled to occupy, but specific occupants may change based on May 1st responses.
- There are 33 projects planned at 32 District campuses

2024-25 Proposition 39 Facilities Renovations "No Change" Projects

#	Board District	Region	District Campus	Charter School	Type (NC=No Change)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	Project Number	Amended Project Name
1	1	S	Obama Global Preparation Academy	Russell Westbrook, Why Not? MS	NC	1	6	2	0	0	0	10373294	Obama Global Preparation Academy - 2023-25 Prop 39
2	3	N	Armstrong MS	High Tech LA Charter MS	NC	1	8	1	0	0	0	10373260	Armstrong MS - 2023-25 Prop 39
3	2	E	Virgil MS	Citizens of the World - Silver Lake	NC	1	7	2	0	0	0	10373308	Virgil MS - 2023-25 Prop 39
4	3	N	Kindergarten Learning Academy	Ararat Charter School	NC	1	6	1	0	0	0	10370596	Kindergarten Learning Academy - 2019-25 Prop 39
5	4	W	Marina Del Rey MS	Goethe International Charter School	NC	1	17	2	0	0	0	10373292	Marina Del Rey MS - 2023-25 Prop 39
6	4	W	Stoner ES	ICEF Vista Academy ES	NC	1	6	2	0	0	0	10373300	Stoner ES - 2023-25 Prop 39
7	5	E	Clinton MS	Animo Jackie Robinson Charter HS	NC	1	21	4	0	0	0	10373264	Clinton MS - 2023-25 Prop 39
8	5	E	Jones ES	Synergy Charter Academy	NC	1	14	2	0	0	0	10373287	Jones ES - 2023-25 Prop 39
9	5	W	Le Conte MS	Citizens of the World - Hollywood	NC	1	20	4	0	0	0	10373289	Le Conte MS - 2023-25 Prop 39
10	4	W	Webster MS	Citizens of the World - Mar Vista	NC	1	5	2	0	0	0	10373310	Webster MS - 2023-25 Prop 39 (Citizens of the World - Mar Vista)
11	5	E	West Vernon ES	Gabriella Charter School #2	NC	1	10	2	0	0	0	10373313	West Vernon ES - 2023-25 Prop 39
12	5	W	Fletcher ES	ISANA Octavia Academy	NC	1	8	2	0	0	0	10373277	Fletcher ES - 2023-25 Prop 39
13	5	W	Hobart ES	Vista Horizon Global Academy	NC	1	8	2	0	0	0	10373283	Hobart ES - 2023-25 Prop 39
14	6	N	Sun Valley Magnet: Engineering, Arts & Technology	ISANA Cardinal Academy	NC	1	12	2	0	0	0	10372516	Sun Valley Magnet: Engineering, Arts & Technology - 2022-25 Prop 39
15	7	S	Dymally HS	Watts Learning Center Charter MS	NC	1	19	2	0	0	0	10373273	Dymally HS - 2023-25 Prop 39
						15	167	32	0	0	0		

2024-25 Proposition 39 Facilities Renovations "Vacating" Projects

#	Board District	Region	District Campus	Charter School	Type (V=To Be Vacated)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget to Vacate Work	FY24 Unspent Budget Balance	Commitments	Additional Budget Needed to Reconfigure Campus	New Project Budget	Project Number	Amended Project Name
1	1	S	Budlong ES	Crete Academy	V	1	10	1	-12	0	\$239,100	\$200,294	\$133,006	\$38,806	\$372,106	10373269	Budlong ES - 2023-25 Prop 39
2	1	S	Manual Arts HS	Global Education Academy MS	V	1	7	2	-10	0	\$200,500	\$162,794	\$90,694	\$37,706	\$291,194	10373293	Manual Arts HS - 2023-25 Prop 39
3	2	E	Lorena ES	Extera Public School #2 - Lorena	V	1	6	2	-9	0	\$181,200	\$143,168	\$5,932	\$38,032	\$187,132	10373284	Lorena ES - 2023-25 Prop 39
4	5	E	Pacific ES	KIPP Pueblo Unido	V	1	9	3	-13	0	\$258,400	\$92,140	\$9,660	\$166,260	\$268,060	10373295	Pacific ES - 2023-25 Prop 39
5	7	S	Peary MS	KIPP Generations Academy	V	1	8	2	-11	0	\$219,800	\$89,852	\$40,248	\$129,948	\$260,048	10373299	Peary MS - 2023-25 Prop 39
						5	40	10	-55	0	\$1,099,000	\$688,248	\$279,540	\$410,752	\$1,378,540		

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE**Margaret Fuentes, Chair**

LAUSD Student Parent

D. Michael Hamner, FAIA, Vice-Chair

American Institute of Architects

Dr. Samantha Rowles, Secretary

LAUSD Student Parent

Robert Campbell, Executive Committee

L.A. Co. Auditor-Controller's Office

Scott Pansky, Executive Committee

L.A. Area Chamber of Commerce

Neelura Bell

CA Charter School Association

Chad Boggio

L.A. Co. Federation of Labor AFL-CIO

Jeffrey Fischbach

CA Tax Reform Assn.

Aleigh Lewis

L.A. City Controller's Office

Patrick MacFarlane

Early Education Coalition

Brian Mello

Assoc. General Contractors of CA

Dr. Clarence Monteclaro

Tenth District PTSA

William O. Ross IV31st District PTSA**Santa Ramirez (Alternate)**

Tenth District PTSA

Connie Yee (Alternate)

L.A. Co. Auditor-Controller's Office

Vacant

AARP

Vacant

L.A. City Mayor's Office

Joseph P. Buchman – Legal Counsel

Burke, Williams & Sorensen, LLP

Lori Raineri and Keith Weaver – Oversight ConsultantsGovernment Financial Services Joint
Powers Authority**Timothy Popejoy**

Bond Oversight Administrator

Perla Zitle

Bond Oversight Coordinator

RESOLUTION 2024-13**BOARD REPORT 269-23/24****RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE 2024-2025
EDUCATION CODE SECTION 47614 (PROPOSITION 39) FACILITIES RENOVATION
EFFORT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION
PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education (Board) define and approve 2024-2025 Education Code Section 47614 (Proposition 39) facilities renovations at up to 51 school sites, as listed on Exhibits A, B, and C, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein for a combined budget of \$6,544,452, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary to implement the Projects; and

WHEREAS, District Staff has concluded that each of the charter schools identified in attached Board Report 269-23/24 submitted a legally sufficient facilities request to the District and may locate on District school sites for the 2024-2025 school year pursuant to Proposition 39; and

WHEREAS, Bond Program funds earmarked for charter school facilities projects will be available to immediately execute renovations at multiple District school sites in order to satisfy the District's responsibilities under Education Code 47614 and related regulations; and

WHEREAS, The facilities improvements will increase the likelihood that the District school and charter school will successfully co-locate on a single school site with minimal interference and disruption to their respective educational programs; and

WHEREAS, the 2024-2025 Proposition 39 Facilities Renovation Effort includes various facilities renovations, reconfigurations, technology, furniture and equipment, and communications/safety systems purchases and upgrades; and

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE 2024-2025 EDUCATION CODE SECTION 47614 (PROPOSITION 39) FACILITIES RENOVATION EFFORT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

WHEREAS, The space allocated to each charter school by the District must be furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school; and

WHEREAS, Funding for the 2024-2025 Education Code Section 47614 (Proposition 39) facilities renovation projects will come from Bond Program funds earmarked for charter school facilities projects; and

WHEREAS, The District Office of General Counsel has reviewed the proposed Projects and determined that they may proceed to the Bond Oversight Committee for consideration and recommendation to the Board of Education; and

WHEREAS, District Staff has concluded that the proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Citizens' Bond Oversight Committee recommends that the Board of Education define and approve the 2024-2025 Education Code Section 47614 (Proposition 39) facilities renovations at up to 51 school sites as listed on Exhibits A, B, and C with a combined budget of \$6,544,452, and amend the Facilities SEP to incorporate therein, as described in Board Report 269-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on April 25, 2024, by the following vote:

AYES: 7

ABSTENTIONS: 4

NAYS: 1

ABSENCES: 1

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair



Proposition 39 Facilities Renovation Effort (2024–25 School Year)

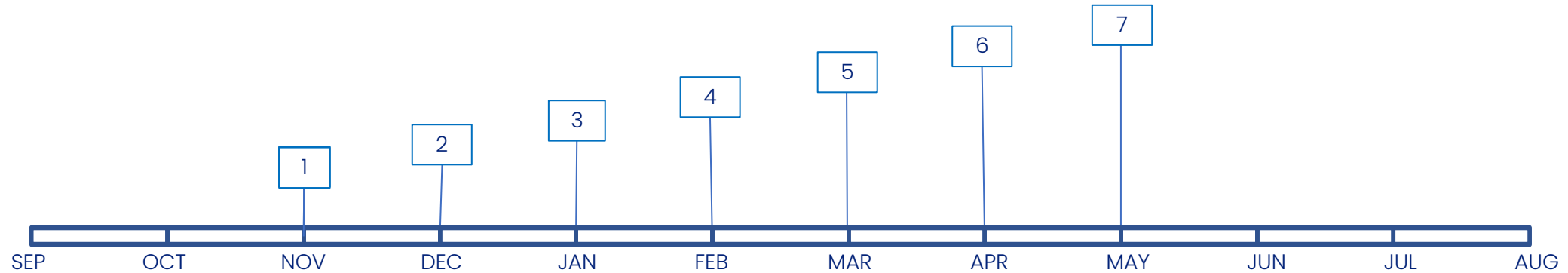
Bond Oversight Committee Meeting
April 25, 2024

Proposition 39 Facilities Renovation

Background

- In November 2020, the passage of Proposition 39 amended California Education Code § 47614 with the intent that public school facilities should be shared fairly among all public school students, including those in charter schools.
- As a result, school districts are required to make available, to all charter schools operating in their school district that submitted a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools of the district.
- Each of the charter schools identified on Exhibits A and B of the Board Report submitted a legally sufficient facilities request to the District and may occupy District school sites for the 2024-2025 school year pursuant to Proposition 39.
- The District is obligated to pay for all costs associated with the effort to provide reasonably equivalent space.
- There are Bond Program funds earmarked specifically for this effort under the *Charter Schools Facilities Upgrades* category. If Bond Program funds are not approved for use, then General Funds would need to be expended instead.

Co-Locations' Annual Deadlines set by the Proposition 39 Implementing Regulations



- 1 By Nov 1st, charter schools submit a written request for use of LAUSD school facilities, including their projected in-district classroom Average Daily Attendance (ADA).
- 2 By Dec 1st, after careful review of each charter school application and ADA, LAUSD agrees or objects to their ADA projections in writing.
- 3 By Jan 2nd, the charter school responds to any objections by reaffirming or modifying the ADA projections.
- 4 By Feb 1st, LAUSD prepares in writing a Preliminary Proposal to charter schools with eligible facilities requests.
- 5 By Mar 1st, charter schools respond to the Preliminary Proposal expressing any concerns, addressing differences, and making counter-proposals.
- 6 By Apr 1st, LAUSD submits in writing a Final Notification of Facilities Offered for each charter school.
- 7 By May 1st, the charter schools either accept or reject the final offers. If the final offer is accepted, LAUSD will prepare the rooms for charter occupancy 10 working days before their first day of instruction.

Renovation Projects Offered to Charter Schools

5-Year Summary

	2020 / 21	2021 / 22	2022 / 23	2023 / 24	2024 / 25
New: Charter is offered campus spaces for the first time	16	12	13	14	2
Growth: Co-located charter will require additional district campus spaces	18	5	17	20	19
No Change: Co-located charter to remain in existing district campus spaces	15	26	17	12	15
Reconfiguration/Reduction: District campus space configuration has changed or been reduced for co-located charter	18	22	18	19	12
	67	65	65	65	48
Vacate: Co-Located charter vacates the site; host school requesting spaces be returned to original configuration	6	2	4	4	5

Scope of Work

- Projects are not fully scoped until after May 1st when it's known who has accepted space.
- At this stage, projects are budgeted with the assumption that the space will need to be completely reconfigured and assumes that there is not adequate furniture in the inventory (for example, the District may need to purchase new furniture if there isn't adequate inventory to provide grade-level specific needs of the charter school).
- The scope of work for each site may include all or just some of the items below:
 - Low voltage systems, including local area data networks, phones, public address (PA) systems, and independent intrusion alarm
 - Repurpose and purchase reasonably equivalent computers, laptop carts, and/or end-user peripherals
 - Renovations and reconfigurations to classroom space
 - Secure entry systems (door camera/buzzer), gates, and related fencing as necessary
 - Repurpose existing furniture and equipment, or plan, purchase, and deliver new furniture and equipment
 - Re-key for separate charter master key system
 - Procurement and delivery of moving materials (boxes, storage containers, etc.), and relocation of room contents

Proposition 39 Approved Budgets vs Expenditures Summary

2024-25 Proposed Action

Year	Project Count ^{1,2}	Budget
FY24-25	38	\$6,544,452

2-Year Expenditure Review

Year	Project Status	Project Count ²	Original Budget	Amount Expended	Expended (%)	Funds Returned to the Program
FY23-24	Completed	57	\$8,362,614	\$2,142,794	25.6%	\$6,219,820
	Cancelled	9	\$6,855,000	\$143	0.0%	\$6,854,857
	Total Board Approved	66	\$15,217,614	\$2,142,937	14.1%	\$13,074,677
FY22-23	Completed	45	\$8,601,675	\$2,484,072	28.9%	\$6,117,603
	Cancelled	7	\$2,974,800	\$23	0.0%	\$2,974,777
	Total Board Approved	52	\$11,576,475	\$2,484,095	21.5%	\$9,092,380

¹ Includes a District site, Westchester Enriched Sciences Magnets, with multi-charter projects

² Excludes projects with "No Change"

Questions?